

## 26STLC03256 26STLC03256

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-23

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Case Number: 26STLC03256 Hearing Date: September 23, 2026 Dept: 25

HEARING DATE: Wed., September 23, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Mercury

Insurance Company v. Lee PET.

FILED: 05-13-26

CASE NUMBER: 26STLC03256

NOTICE:

OK

PROCEEDINGS: MOTION TO CONSOLIDATE ACTIONS

MOVING PARTY: Respondent

Mercury Insurance Company

RESP. PARTY: Petitioner Insang Lee

MOTION TO CONSOLIDATE

(Code Civ. Proc., § 1048; Cal. Rules of Court, rule 3.350)

TENTATIVE RULING:

The Court DENIES Mercury Insurance Company's motion to consolidate.

Lee is to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on September 16, 2026 ☒ Late ☐ None

REPLY: None

filed as of September 17, 2026 ☐

Late ☒ None

ANALYSIS:

Mercury Insurance Company petitioned the Court to assign a case number for purposes of consolidation with Los Angeles County Superior Court Case No. 25STLC06553. Mercury then filed this motion to consolidate this action with Case No. 25STLC06553 pursuant to Code of Civil Procedure section 1048 and California Rules of Court rule 3.350.

Mercury's motion fails to comply with the mandatory procedural requirements of California Rules of Court rule 3.350. The notice of the motion does not list all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; does not contain the captions of the cases sought to be consolidated; and was not also filed in Case No. 25STLC06553. (Cal. Rules of Court, rule 3.350(a)(1).) Additionally, the motion was not filed in the lowest numbered case only, which would be Case No. 25STLC06553, and was not served on all attorneys of record in both cases. (Id., rule 3.350(a)(2).)

Accordingly, the Court  
DENIES Mercury's motion.

Lee is to give notice.